IN THE DISTRICT COURT '2' HELD AT ADENTAN, ACCRA ON TUESDAY 29TH APRIL 2025 BEFORE HER WORSHIP RHODA K. DONKOR

SUIT NO. B7/061/24

THE REPUBLIC

VRS.

ABDULAI MUSAH

JUDGMENT

The Accused person was arraigned before this court on the following offences.

a. **Causing unlawful Damage contrary to Section 172 (1) (b) of the Criminal offences Act. 1960 (ACT 29).**
b. **Unlawful Entry contrary to Section 152 of the Criminal Offences Act, 1960 (ACT 29).**
c. **Stealing contrary to Section 124 (1) of the Criminal Offences Act, 1960 (ACT 29).**

The Accused pleaded not guilty to all the charges.

The brief facts of the case as presented to the court by the prosecution are that, the Complainant is a business woman and resides at Adenta housing down. On 12th July 2024, the Complainant went to her building site and detected that pieces of her fabricated iron rod pillars had been taken away. Upon her personal investigations, an informant informed her that he saw the Accused with the pieces of fabricated iron rod pillars heading towards the scraps shop at Ayi mensah. Police investigations were extended to the scraps shop where the scraps dealer confirmed that it was the Accused who brought the iron rod pillars to his shop to sell. The Accused was arrested and after police investigations, Accused was charged with the offences as stated on the charge sheet and brought before this court.

The prosecution called a witness in prove its case. The witness in his evidence on oath per his witness statement filed on the 13th day of September, 2024, said, on the 12th day of July,

2024 the complainant went to her building site to fix her wooden door which thieves had earlier on broken down to steal her building material. On reaching there, she detected that her fabricated iron rod pillars were also stolen. Through investigations, she had information that the Accused was seen with the fabricated iron rod pillars heading towards the scraps shop. The police with the Complainant went to the scraps shop and the Accused was called on phone. The Accused admitted and confirmed by the scraps dealer that it was the Accused who brought the fabricated iron rod pillars to the scrap shop to sell. The Cautioned Statement, Charged Statement and Photographs of the fabricated iron rod pillars were tendered into evidence.

The Accused in his defence stated that on the day in question, he went to work at Danfa. On his way back home, he met a certain man selling the fabricated iron rod pillars. He bargained with him and bought the iron rod pillars with his colleague. They then took the iron rod pillars to the scraps shop to sell but could not meet the shop owner. They left them to come back later. That while at work at Danfa, he had a call from a colleague that the police were at the scraps shop in respect of the fabricated iron rod pillars they had brought to the scraps shop to sell. He came to the shop and met the police. According to the Accused, he bought the fabricated iron rod pillars with his colleague and took them to the scrap shop to sell. He did not steal the fabricated iron rod pillars nor did he cause damage to the Complainant door to enter the building site.

The summary of the prosecution's case is that the Accused on the day caused damage to the wooden door of the Complainant to steal her fabricated iron rod pillars.

Accused on his part has denied and said he bought the fabricated iron rod pillars with a colleague and sent same to the scraps shop to sell. He maintain, that because he did not steal the fabricated iron rod pillars that was why he came when the police called him in connection with the fabricated iron rod pillars.

At the close of the trial, the following findings of facts were made.

1. The Accused person brought the fabricated iron rod pillars to the scraps shop to sell.

2. The person from whom the Accused alleged he and his colleague bought the fabricated iron rod pillars from could not be produced.
3. The Accused could not also call his colleague in support of his case.

Section 13(1) of the Evidence Act 1975, (NRCD323) provides that, in a Civil or Criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt.

On the charge of causing damage, prosecution is to prove that

a. The Accused intentionally caused the damage.
b. The damage caused was unlawful and had no legal justification.

Under **Section 153 of Act 29**, a person unlawfully enters a building if the person enters otherwise then in the exercise of a lawful right or by the consent of other person able to give the consent for the purpose for which the person enters.

For a person's actions to constitute unlawful entry the prosecution must established that:

a. The Accused person entered a building
b. The entry was unlawful
c. The Accused entered with the intent to commit crime. See the case of **Kanjarga vrs. The State (1965) GLR 479 SC**.

In the case of **Lucien vrs. The Republic (1971) GLR 357**, the prosecution on a charge of stealing is to prove;

a. The appropriation of a thing allegedly stolen
b. The appropriation of a thing allegedly stolen must have been dishonest.
c. The person charged is not the owner.

In the facts, it was that thieves had initially broken the wooden door of the Complaint to steal his building materials.

On the day in question, Complainant went to fix the broken down wooden door when she detected that thieves had entered the building again and made away with pieces of the fabricated iron rod pillars.

Thus, if it was the case that, the Complainant went to the site to fix her broken wooden door, it cannot be said that it was Accused person who caused damage to the wooden door on the day to enter the building.

From the pieces of evidence available before the court, the prosecution has failed to establish the charge of causing unlawful damage and unlawful entry against the Accused in this case.

However, what prosecution has been able to establish is that it was the Accused who carried the fabricated iron rod pillars to the scraps dealer to sell. That though the Accused denied stealing same, he did not call evidence to show that indeed, he bought the fabricated iron rod pillars and that same were not stolen.

On the strength of the evidence before this court, the prosecution has been able to prove its case against the Accused on the charge of stealing the fabricated iron rod pillars and not on the charges of causing unlawful damage and unlawful entry.

The Accused is hereby found not guilty on the Counts 1 and 2 and acquitted and discharged.

The Accused is however, found guilty on Count 3 and convicted. He is sentenced to enter into a bond to be of good behaviour for 6 months in default to 3 months imprisonment in hard labour.

In sentencing the Accused, the court has taken into account the fact that the Accused has been in lawful custody since July 2024 due to his inability to get sureties to secure his bail and the fact that the fabricated iron rod pillars has also been retrieved.

SGD

H/W RHODA K. DONKOR

MAGISTRATE